

SENATE No. 1002

The Commonwealth of Massachusetts

PRESENTED BY:

Edward J. Kennedy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to accessory dwelling units on smaller lots.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Edward J. Kennedy</i>	<i>First Middlesex</i>	
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>6/27/2025</i>

SENATE No. 1002

By Mr. Kennedy, a petition (accompanied by bill, Senate, No. 1002) of Edward J. Kennedy for legislation to require a municipal vote relative to tenant occupancy of accessory dwelling units on smaller lots. Housing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to accessory dwelling units on smaller lots.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 7 of Chapter 150 of the Acts of 2024 is hereby amended by adding after the word
2 "rental" the following words:-

3 In zoning districts designated for single family housing and where the minimum lot size
4 is 10,000 square feet or less, accessory dwelling units by right will be limited to owner occupied
5 properties and accessory dwelling units can only be occupied by members of the property
6 owner's extended family. The owner occupancy and family relation requirements may be waived
7 with a vote of the municipality.